

**SUPERIOR COURT, STATE OF CALIFORNIA
COUNTY OF SANTA CLARA**

**Department 13
Honorable Daniel T. Nishigaya**

R. Belligan, Courtroom Clerk
191 North First Street, San Jose, CA 95113
Telephone: 408-882-2240

DATE: July 15, 2026 TIME: 10:00 A.M.

**TO CONTEST A TENTATIVE RULING, YOU MUST CALL (408) 808-6856
BEFORE 4:00 P.M. ON THE DAY PRIOR TO THE HEARING.**

You must also inform all other sides to the issue before 4:00 P.M. the day prior to the hearing that you plan to contest the ruling. The Court will not hear argument, and the tentative ruling will be adopted if these notifications are not made. (Cal. Rule of Court 3.1308(a)(1); Civil Local Rule 8.D.)

IN-PERSON APPEARANCES: Department 13 is a fully open courtroom conducting in-person hearings on the days it has scheduled matters. The Court **strongly** encourages **in-person** appearances for any **contested** law-and-motion matter.

REMOTE APPEARANCES: Remote appearance is governed by Civil Local Rule 5 and General Local Rule 9. Department 13 uses UDC as its remote platform. Please click on this link if you need to appear remotely, and then scroll down to click the link for Department 13:

<https://santaclara.courts.ca.gov/online-services/remote-hearings>

The Court **strongly** encourages in-person appearance, but if appearing remotely, **VIDEO IS REQUIRED**. Audio only appearances are not allowed absent exceptional circumstances. (Civil Local Rule 5.B.)

TELEPHONIC APPEARANCE IS PROHIBITED, unless the Court grants an exception. (Civil Local Rule 5.A.) CourtCall is no longer available.

RECORDING IS PROHIBITED: State and local court rules prohibit recording court proceedings without a court order. This prohibition applies to both in-person and remote appearances.

COURT REPORTERS ARE NOT PROVIDED: If any party wishes to have a court reporter, the appropriate forms and process can be found here:

https://www.scsccourt.org/general_info/court_reporters.shtml.

SCHEDULING MOTION HEARINGS: Go to <https://reservations.scsccourt.org> or call 408-882-2430 between 8:30 a.m. and 12:30 p.m. (Mon.-Fri.) to reserve a hearing date for your motion *before* you file and serve it. You must then file your motion papers no more than five court days after reserving the hearing date, or else the date will be released to other cases.

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LINE #	CASE #	CASE TITLE	RULING
LINE 1	24PR198832	THE ESTATE OF MIGNON GIBSON	Motion to Compel & RFAs Deemed Admitted Ctrl Click (or scroll down) on Line 1 for tentative ruling.
LINE 2-6	25PR199483	The Stiebel Family Trust	Continuing proceedings re: <i>Vesco</i> Hearing & Pending Matters

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Calendar Line 1

Case Name: *THE ESTATE OF MIGNON GIBSON*

Case No.: 24PR198832

INTRODUCTION

Three individuals, including Camella Nair (“Nair”) and Charles Gibson (“Gibson”) have petitioned the Court for probate of the will of Mignon Gibson and/or for letters of administration of Mignon Gibson’s estate.

Currently before the Court is Nair’s motion to compel initial responses to discovery requests served on Gibson and for an order deeming the facts stated in Nair’s requests for admission admitted. The motion is unopposed.

RELEVANT PROCEDURAL HISTORY

Nair asserts that she served form interrogatories, special interrogatories, requests for production of documents, and requests for admission on Gibson on February 24, 2026. After two extensions of time, no responses were received.

DISCUSSION

I. LEGAL BACKGROUND

“Unlike a motion to compel further responses, a motion to compel [initial] responses is not subject to a 45-day time limit . . .” (*Sinaiko Healthcare Consulting, Inc. v. Pacific Healthcare Consultants* (2007) 148 Cal.App.4th 390, 404 (*Sinaiko*)). There is no meet and confer requirement or time limit for bringing a motion to compel initial discovery responses, and the moving party need only show that the discovery was properly served and a timely response was not provided. (Code Civ. Proc., §§ 2030.290 [interrogatories]; Code Civ. Proc., 2031.300 [requests for production of documents]; 2033.280 [requests for admission]; *Sinaiko, supra*, 148 Cal.App.4th at pp. 410-411; *Leach v. Superior Court* (1980) 111 Cal.App.3d 902, 905-906.)¹ No separate statement is required. (Cal. Rules of Court, rule 3.1345(b).)

Generally, when a party has failed to timely provide initial responses to the discovery requests at issue, he or she has waived any objection to them. (§§ 2030.290, subd. (a) [A party who fails to serve timely responses to interrogatories waives any objections to the requests, including those based on privilege or the work product doctrine.]; 2031.300, subd. (a) [a party who fails to serve timely responses to a request for production or inspection of documents “waives ‘any objection to the demand, including one based on privilege or on the protection for work product under Chapter 4 (commencing with Section 2018.010).”]; 2033.280, subd. (a) [A party who fails to serve timely responses to a request for admissions waives any objections to the requests, including those based on privilege or the work product doctrine]; see also *Scottsdale Ins. Co. v. Super. Ct.* (1997) 59 Cal.App.4th 263, 273 [waiver occurs where the

¹ All further undesignated statutory references are to the Code of Civil Procedure.

responding party fails to timely raise an objection in its initial response]; *Catalina Island Yacht Club v. Superior Court* (2015) 242 Cal.App.4th 1116, 1125.)

Additionally, where the responding party fails to respond to requests for admission, “[t]he requesting party may move for an order that the genuineness of any documents and the truth of any matters specified in the requests be deemed admitted, as well as for a monetary sanction under Chapter 7 (commencing with Section 2023.010).” (§ 2033.280, subd. (b).) “The court shall make this order, unless it finds that the party to whom the requests for admission have been directed has served, before the hearing on the motion, a proposed response to the requests for admission that is in substantial compliance with Section 2033.220.” (§ 2033.280, subd. (c).)

II. MERITS OF THE MOTION

Here, Nair has shown that Gibson did not provide responses to her discovery requests. Gibson has not moved for relief from waiver. (See §§ 2031.300, subd. (a) [requests for production]; 2030.290, subd. (a) [interrogatories]; 2033.280, subd. (a) [requests for admission].)

Accordingly, the motion is GRANTED. Gibson is ordered to provide code-compliant, objection free responses to Nair’s form interrogatories, special interrogatories, and requests for production within 30 days of the date of this court’s final order on this motion. The matters stated in Nair’s requests for admission are deemed admitted.

III. NAIR’S REQUEST FOR SANCTIONS

Nair requests monetary sanctions in the amount of \$807.50. This amount is comprised of 1.7 hours of attorney time in attempting to contact Gibson and drafting the motion, at \$475 per hour.

Sections 2030.290, subdivision (c), 2031.300, subdivision (c), and 2033.280, subdivision (d) each provide for mandatory monetary sanctions. Nair does not contend that there is any reason not to award the sanctions sought. The court finds counsel’s hourly rate reasonable and time spent reasonable. Accordingly, the request for sanctions is GRANTED in the amount of \$807.50. Gibson is ordered to pay \$807.50 to Nair’s counsel within 30 days of the date of the court’s order on this motion.

CONCLUSION

The motion is GRANTED. Gibson is ordered to provide code-compliant, objection free responses to Nair’s form interrogatories, special interrogatories, and requests for production within 30 days of the date of this court’s final order. The matters stated in Nair’s requests for admission are deemed admitted. Nair’s request for sanctions is GRANTED in the amount of \$807.50. Gibson is ordered to pay \$807.50 to Nair’s counsel within 30 days of the date of the court’s order on this motion.

The Court will prepare the final order.

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